

Queensland



Regulatory Impact Statement for SL 2002 No. 341

Fisheries Act 1994

FISHERIES (FRESHWATER) AMENDMENT MANAGEMENT PLAN (No. 1) 2002

TITLE

Fisheries (Freshwater) Amendment Management Plan (No. 1) 2002.

AUTHORISING LEGISLATION

The proposed legislation is to be made under the provisions of the *Fisheries Act 1994*.

PROPOSED LEGISLATION

BACKGROUND

The proposed legislation is an amendment to the *Fisheries (Freshwater) Management Plan 1999* (the 'plan'). The plan provides the management arrangements for Queensland's freshwater (non-tidal) fisheries.

Under the provisions of the plan the Chief Executive must commence a review of the whole plan at least five years, but no more than nine years, after the plan commenced. The plan commenced on 1 April 1999.

The Chief Executive must also review certain sections of the plan every two years (or at an earlier time if considered appropriate). Sections to be reviewed every two years include aspects such as bag and size limits, and

closed waters. The proposals contained in this Regulatory Impact Statement (RIS) are the outcome of the first two-year review of certain sections of the plan.

A RIS must be prepared for all subordinate legislation which is 'likely to impose appreciable costs on the community or a part of the community'. Costs are defined under the *Statutory Instruments Act 1992* as including—

- burdens and disadvantages; and
- direct and indirect economic, environmental and social costs.

Sections of the plan that must be reviewed every two years are as follows—

- closed seasons;
- closed waters;
- regulated fish;
- river basins in which:
 - freshwater fish may be released;
 - aquaculture resources may be stocked in farm dams and other waters on private land;
 - freshwater fish produced in aquaculture may be used as live bait;
- impoundments that are stocked with Australian bass to which the closed season does not apply;
- stocked impoundment permits.

The legislative proposals within this RIS are intended to ensure that Queensland's freshwater fisheries resources are used in an ecologically sustainable way, that optimum (but sustainable) benefits are obtained from them, and that access to resources is fair.

CLOSED SEASON PROPOSALS

The plan provides for closed seasons for certain species of fish to protect fish at particularly vulnerable times in their lifecycle. These vulnerable times are usually immediately before or during the spawning season, when they are concentrated in relatively confined areas or are otherwise more susceptible to being caught.

The plan also provides for an exemption to these closures where fish are not likely to contribute to a natural spawning population.

Exemption to Australian bass closed season

Current provision—Section 6(2)	Proposed amendment
The period from 1 June to 31 August in every year is a closed season for Australian bass. However, the closed season currently does not apply to the taking or possession of Australian bass from the waters of 20 dams/impoundments throughout Queensland. These are— Baroon Pocket Dam Borumba Dam Bjelke Petersen Dam Boondooma Dam Gordonbrook Dam Lake Dyer Isis Balancing Storage Fred Haigh Dam Lake MacDonald Lake Clarendon Lenthalls Dam Wuruma Dam Maroon Dam Hinze Dam Moogerah Dam Wivenhoe Dam North Pine Dam Cressbrook Dam Somerset Dam Cania Dam	That additional exemptions be provided in respect of the Australian bass closed season, from 1 June to 31 August each year for— Gayndah Weir Mundubbera Weir

The exemption from the closed season was provided for the above-mentioned 20 impoundments on the basis that impoundment bass do not contribute to breeding populations because they are unlikely to reach estuarine spawning grounds during the spawning season. Impoundment bass do not require the same degree of protection as bass in natural riverine populations that are likely to reach estuaries during the spawning season. The two additional impoundments proposed for the exemption contain bass that are unlikely to reach estuarine spawning grounds during the spawning season.

Exemption to barramundi closed season

Current provision—Section 8(2); Section 24	Proposed amendment
The period from midday 1 November to midday 1 February in the next year is a closed season for barramundi on the East Coast of Queensland. However, the closed season currently does not apply to a recreational angler, who— • in the Tinaroo Dam (Atherton) or Awoonga Dam (Gladstone) areas takes barramundi or possesses barramundi taken in the area, or • possesses barramundi outside these areas, if the barramundi was taken in either area and is tagged in the required way.	That an exemption be provided in respect to the barramundi closed season for impoundments stocked with barramundi (as listed below). That the maximum size limit of 120cm for barramundi caught in stocked impoundments (as listed below) be removed. That a bag limit of 1 apply to the taking of barramundi from impoundments stocked with barramundi (as listed below) during the closed season. That the tagging requirement for barramundi taken during the closed season from Tinaroo Dam and Awoonga Dam be removed.

These proposals relate to the following impoundments that have been stocked with barramundi—

Burdekin Falls Dam	Lake Moondarra
Lake Monduran	Lake Corella
Kinchant Dam	Lenthalls Dam
Eungella Dam	Fairbairn Dam
Teemburra Dam	Koombooloomba Dam
Callide Dam	Lake Belmore
Wuruma Dam	Peter Faust Dam
Lake Julius	East Leichhardt Dam
Tinaroo Dam	Awoonga Dam

Barramundi is a very important commercial and recreational species that inhabits freshwater and tidal waters. It is highly sought after by recreational anglers, in particular in north Queensland. Barramundi have been stocked into many dams to create recreational fisheries. The development of these freshwater recreational fisheries has resulted in an economic input to local communities through the purchase of food, drinks, petrol, accommodation and other local services.

The closed season for barramundi was introduced as a means to protect spawning fish. Barramundi that have been stocked into dams do not breed because they cannot gain access to saltwater. These fish are unable to contribute to natural spawning populations and therefore the closed season is not necessary. The exemption to the closed season currently applies only to Tinaroo Dam and Awoonga Dam.

The maximum size limit (120cm) for barramundi was introduced to protect large female fish. Again, because barramundi do not breed in dams and cannot contribute to natural spawning populations, the maximum size limit is not necessary. The exemption to the maximum size limit currently applies only to Tinaroo Dam and Awoonga Dam.

A requirement currently exists to have barramundi tagged if they are caught from Tinaroo Dam or Awoonga Dam during the closed season and if they are greater than 120cm. This provision was introduced to assist in the enforcement of the legislation. Recreational anglers need to be able to gain easy access to tagging stations, and a boundary surrounding the dam (outside of which a tag is required) needs to be clearly identifiable. The current tagging system is not considered suitable for extending to a large number of dams, in terms of cost and practicality. Other States and countries have similar exemptions but without the requirement to tag fish. Although there is no requirement to tag fish, difficulties have not been experienced with enforcing these exemptions. It is proposed that the tagging requirement that currently exists for Tinaroo Dam and Awoonga Dam will be removed.

A bag limit of one has been proposed for the listed dams to allow for recreational anglers to catch stocked barramundi during the closed season without compromising the seasonal closure on wild barramundi.

Angler education will be a high priority to ensure that these provisions are successful.

CLOSED WATER PROPOSALS

Structures such as dams and weirs create barriers to the movement of native migratory fish such as Australian bass, golden perch, silver perch and barramundi. Consequently, these fish commonly congregate on the downstream side of such structures. During times of drought and low flows, fish may also congregate in the deep waters on the upstream side of some structures. This increases the susceptibility of fish in these areas to heavy fishing pressure.

Closures have typically been applied to dams and weirs with a standard distance of 400m upstream and downstream of the structure. Closures associated with these barriers reduce fishing opportunities for anglers. Consequently the closures proposed in this document have been assessed on a case-by-case basis, in order to protect the fisheries resource while maintaining access for anglers.

Chinchilla Weir

Current provision—Schedule 3, Section 9	Proposed amendment
The current closed waters declaration for the Chinchilla Weir (on the Condamine River, near Chinchilla) is 400m upstream and 400m downstream.	That the downstream closure on Chinchilla Weir be reduced from 400m to 200m, and the upstream closure be reduced from 400m to 100m.

To comply with the existing 400m closure upstream and downstream from the weir wall, anglers need to access private property. Reducing the distance means land-based anglers have access to the fishery through State-owned land without the need to gain permission to enter private property. A downstream closure of 200m and an upstream closure of 100m will still provide adequate protection for the fisheries resource.

Claude Wharton Weir

Current provision—Schedule 3, Section 18(b)	Proposed amendment
The current closed waters declaration for the Claude Wharton Weir (on the Burnett River, near Gayndah) is 200m upstream and 200m downstream of the weir.	That the downstream closure on the Claude Wharton Weir be reduced from 200m to 150m.

To comply with the existing 200m closure downstream from the weir wall, anglers need to access private property. Reducing the distance means land-based anglers have access to the fishery through State-owned land without the need to gain permission to enter private property. A downstream closure of 150m would still provide adequate protection for the fisheries resources.

No change is proposed for the upstream closure.

Fairmount Weir

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Fairmount Weir (on the Thomson River, near Longreach).	That a closed waters declaration be introduced for a 50m upstream and 200m downstream closure on Fairmount Weir.

A dual-bank rock ramp fishway was installed at Fairmount Weir in late 2000. Post-construction monitoring has shown that the fishway has successfully provided upstream passage for a range of adult and juvenile native fish including golden perch, Barcoo grunter and Welch's grunter.

These native species migrate within freshwater for purposes such as breeding, or for dispersal and access to different habitats and food resources.

During dry periods the fish are unable to migrate past the weir and congregate in pools below the weir. A 200m downstream closure will provide protection for migrating fish during flow periods as well as providing protection to the fisheries resources during dry periods. The 50m upstream closure has been proposed to protect migratory fish as they exist the rock ramp fishway.

Hinze Dam

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Hinze Dam (on the Nerang River, near Nerang).	That a closed waters declaration be introduced for a 400m downstream closure on Hinze Dam.

During overflow events at Hinze Dam, Australian bass have a tendency to move downstream resulting in a large number of stocked fish moving over the spillway and into the Nerang River. It has been reported that large

numbers of fish are targeted during these events, while congregating below the spillway. The proposed closure of 400m encompasses the section of river between the spillway and a small bridge that leads to the picnic area.

An upstream closure is not proposed.

Luscombe Weir

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Luscombe Weir (on the Albert River, near Yatala).	That a closed waters declaration be introduced for a 120m downstream closure on Luscombe Weir.

Luscombe Weir is the first major barrier on the Albert River and prevents the migratory movements of native fish between the saltwater and freshwater reaches of the river. It is likely that fish migrating upstream have either contributed to the native population through spawning, or are juvenile fish that have resulted from a breeding population. It has been reported that large numbers of fish are targeted below the weir during the migratory phase.

A non-working fishway exists on this weir, which provides a near-continuous attraction flow, resulting in the attraction of fish to the large pool that exists below the weir. This situation is quite unique in that the congregation of fish extends the entire length of the pool rather than being concentrated directly below the weir wall. The pool extends for 120m below the weir before narrowing into a riffle area.

The 120m downstream closure would allow for the protection of native migratory fish that have congregated below the weir.

An upstream closure is not proposed.

Lake MacDonald

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Lake MacDonald (on Six Mile Creek, near Cooroy).	That a closed waters declaration be introduced for a 100m downstream closure on Lake MacDonald.

Several waterholes exist below the dam wall where Australian bass become landlocked in times of low flow. Anglers are known to fish from the foot bridge that is situated about 25m below the dam wall. A 100m

downstream closure would provide protection to the fisheries resource, exclude the carpark area from the closure, and allow anglers to gain access to several pools below the carpark.

An upstream closure is not proposed.

Old Mt Crosby Weir

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Old Mt Crosby Weir (on the Brisbane River, near Mt Crosby).	That a closed waters declaration be introduced for a 50m downstream closure on Old Mt Crosby Weir.

Native fish, such as Australian bass, move to saltwater to breed and then return to freshwater. The Old Mt Crosby Weir is the first barrier that is encountered by native fish migrating upstream within the Brisbane River. It is likely that fish migrating upstream have either contributed to the native population through spawning or are juvenile fish that have resulted from a breeding population. It has been reported that large numbers of fish are targeted at the weir during the migratory phase. The 50m downstream closure will allow for the protection of native migratory fish that have congregated below the weir.

An upstream closure is not proposed.

Walla Weir

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Walla Weir (on the Burnett River, near Gayndah).	That a closed waters declaration be introduced for a 50m upstream and 200m downstream closure on Walla Weir.

Walla Weir has a fully functioning fish-lock to allow for the movement of native migratory fish past the weir. The proposed 50m upstream closure has been suggested to protect migratory fish as they exist the fish-lock.

The Burnett River at Walla Weir is known to contain breeding populations of the protected lungfish. The 200m downstream closure will allow for the inclusion of a pool where native fish, including lungfish, congregate before negotiating the fish lock.

Wivenhoe Dam

Current provision—Nil	Proposed amendment
A closed waters declaration does not currently exist for Wivenhoe Dam (on the Brisbane River, near Fernvale).	That a closed waters declaration be introduced for a 600m downstream closure on Wivenhoe Dam.

The movement of native migratory fish, such as Australian bass, within the Brisbane River is restricted by both the Wivenhoe Dam wall and a gauging weir situated 500m downstream of the dam wall. These migratory fish school in a pool directly below the gauging weir and it has been reported that large numbers of fish are targeted in this area. The 600m downstream closure will allow for the protection of native migratory fish within this pool as well as within the gauging weir area.

An upstream closure is not proposed.

REGULATED FISH

Minimum legal size limits set the smallest size at which a fish can be legally kept. Size limits generally protect small fish until they have had the chance to breed at least once.

Bag limits are a management measure to protect fish stocks and share the catch, particularly where fish numbers are limited and/or the fish are susceptible to capture. Bag limits convey the message of ethical and responsible behaviour in the use of fisheries resources and encourage anglers to catch only what they need.

State-wide proposals have been suggested, where appropriate, to aid the community in the interpretation of legislation. Legislation that differs for each regional area of Queensland can become difficult to understand together with the increase in costs involved with community education campaigns and enforcement.

Golden perch

Current provision—Schedule 4, Section 1	Proposed amendment
A bag limit of 10 for golden perch currently exists throughout Queensland.	That the bag limit for golden perch be amended from 10 to 5 throughout Queensland.

Numbers of golden perch have been reported to be declining in many areas throughout its natural range. A decrease in the bag limit will aid in ensuring the sustainability of golden perch throughout Queensland.

Silver perch

Current provision—Schedule 4, Section 2	Proposed amendment
A composite bag limit of 10 for silver perch, Barcoo grunter and Welch's grunter currently exists throughout Queensland.	That the composite bag limit for silver perch, Barcoo grunter and Welch's grunter be amended from 10 to 5 throughout Queensland. That silver perch be regulated within the Warrego and Paroo river systems (i.e. a catch and release fishery would exist within these two river systems).

Wild populations of silver perch have undergone a dramatic decline in abundance throughout their natural range - the Murray-Darling Basin. Silver perch is now classified as 'vulnerable' according to the IUCN Red List category classifications used by the Australian Society for Fish Biology. This category relates to a species that is 'facing a high risk of extinction in the wild in the medium-term future'.

While silver perch is still recorded in low numbers throughout many areas of the Murray-Darling Basin, there are now few areas where the species could be considered abundant. Wild populations are considered to be relatively abundant in the Warrego and Paroo River systems. Given the significant decline of this species, the protection of key populations such as those in the Warrego and Paroo systems should be given priority as they represent an important resource for the future. The protection of silver perch in these two systems would protect wild stocks. These wild stocks represent a crucial source of broodstock for any recovery efforts that may be initiated for this species.

Combined total bag limits are a useful approach as it is difficult to distinguish between closely related species of fish. An amendment to the composite bag limit will aid in ensuring the sustainability of silver perch, Barcoo grunter and Welch's grunter throughout Queensland.

Eel-tailed catfish

Current provision—Section 20	Proposed amendment
A composite bag limit of 5 for eel-tailed catfish in the genera <i>Neosilurus</i> and <i>Tandanus</i> currently exists within the Murray-Darling system.	That a composite bag limit of 5 for eel-tailed catfish in the genera <i>Neosilurus</i> and <i>Tandanus</i> be introduced throughout Queensland.
A composite bag limit of 10 for eel-tailed catfish in the genera <i>Neosilurus</i> and <i>Tandanus</i> currently exists outside the Murray-Darling system.	That Cooper Creek catfish (<i>Neosiluroides cooperensis</i>) be added to the composite bag limit for eel-tailed catfish. That Obbes catfish (<i>Porochilus obbesi</i>) and silver tandan (<i>Porochilus argenteus</i>) be added to Schedule 4 of the plan with a bag limit of 20.

Catfish in the genera *Neosilurus* and *Tandanus* include the eel-tailed catfish, black catfish, false spine catfish, Hyrtl's tandan and short-finned catfish. The combined total bag limit on catfish is a useful approach as it is difficult to distinguish between closely related species.

Eel-tailed catfish have significantly declined within the majority of the Murray-Darling Basin and its conservation status has recently been reassessed to 'vulnerable' in accordance with the IUCN Red List category classifications. This category relates to a species that is 'facing a high risk of extinction in the wild in the medium-term future'.

Queensland currently represents the stronghold of the population of eel-tailed catfish within the Murray-Darling Basin. Protection of the species within Queensland is considered a high priority under the National Recovery Plan for Freshwater Catfish.

An amendment to the composite bag limit will aid in ensuring the sustainability of eel-tailed catfish throughout Queensland, and encourage sharing of the resource and taking only what is needed.

A new catfish genus has been described from Australian freshwater. The new genus is *Neosiluroides* and it differs from all other eel-tailed catfish. The Cooper Creek catfish (*Neosiluroides cooperensis*) has no close relatives (being the only species in its genus) and its relationships to other catfish genera are obscure. However it still may be confused with other

eel-tailed catfishes. The Cooper Creek catfish is little known, occurring only in the Cooper Creek River system where it is widespread though rarely abundant.

The original intent of the combined total bag limit on catfish was to include all large, edible sized eel-tailed catfish. Smaller species were included in the aquarium species list (Schedule 4) with a bag limit of 20.

Consequently the Cooper Creek catfish (*Neosiluroides cooperensis*) has been proposed for addition to the composite bag limit for eel-tailed catfish. Obbes catfish (*Porochilus obbesi*) and silver tandan (*Porochilus argenteus*) have been proposed for addition to Schedule 4 (the aquarium species list) with a bag limit of 20.

River blackfish

Current provision—Nil	Proposed amendment
No provision currently exists under the plan for river blackfish.	That a bag limit of 2 for river blackfish be introduced. That river blackfish— <i>Gadopsis marmoratus</i> be listed on Schedule 8—Aids to interpretation and definitions.

The blackfish (*Gadopsis marmoratus*) occurs in northern Tasmania, all States of the Murray-Darling Basin and some coastal catchments of South Australia and Victoria. In the Queensland section of the Murray-Darling Basin this species is only found in the upper Condamine River above Killarney and in the upper Severn River. This species appears to favour clear, fast flowing streams and be heavily dependent upon the cover of undercut banks, rock and timber.

Blackfish is not found in other areas of Queensland. Its distribution is believed to be dwindling throughout its range, and its range in Queensland is naturally restricted to a very small area.

Limiting the number of river blackfish that a person may take and possess would help to ensure that the Queensland population of this species is used in a sustainable way.

Blueclaw crayfish

Current provision—Nil	Proposed amendment
No provision currently exists under the plan for blueclaw crayfish.	That a bag limit of 100 for blueclaw crayfish be introduced throughout Queensland. That a requirement be introduced that all berried females be returned to the water in the natural range (as listed below) of the blueclaw crayfish.

The natural range of blueclaw crayfish (*Cherax destructor*) is known as—

- the Lake Eyre Drainage Division;
- the Bulloo-Bancannia Drainage Division;
- the Murray-Darling Drainage Division;
- waters within the following river basins in the East Coast Drainage Division—
 - Belyando
 - Issac
 - Dawson

It has been reported in the Lake Eyre Region that large numbers of blueclaw crayfish have been taken and are being unlawfully sold interstate. Limiting the number of blueclaw crayfish that may be taken and possessed is a way to protect stocks and to share the catch. With species of commercial value, bag limits help reduce the illegal sale of fish by limiting the legal catch to below commercial quantities.

The return of berried females (carrying eggs and/or young) to their natural habitat would assist in protecting blueclaw crayfish stocks.

Redclaw crayfish

Current provision—Section 22; Section 27(2)	Proposed amendment
A bag limit of 40 for redclaw crayfish currently exists within the— • Gulf of Carpentaria, • Lake Tinaroo • Waters within the following river basins in the East Coast Drainage Division—Hann, Jacky Jacky, Lockhart, Normanby, Olive, Pascoe and Stewart. Berried females must be returned to the water in the natural range of redclaw crayfish, and in Lake Tinaroo.	That a bag limit of 40 for redclaw crayfish be introduced throughout Queensland. That a requirement be introduced that all berried females be returned to the water in the natural range (as listed below) of the redclaw crayfish.

The natural range of redclaw crayfish (*Cherax quadricarinatus*) is known as—

- Gulf of Carpentaria Drainage Division
- waters within the following river basins in the East Coast Drainage Division—
 - Hann
 - Jacky Jacky
 - Lockhart
 - Normanby
 - Olive
 - Pascoe
 - Stewart

Redclaw crayfish has become established in several waters outside its natural range, such as Lake Tinaroo, Fairbairn Dam, Peter Faust Dam and North Pine Dam. Large populations have established within these dams that have given rise to recreational fisheries. There have been a number of requests from the public for the introduction of a limit on the number of

redclaw crayfish that may be taken or possessed outside of its natural range.

The impact of species such as redclaw crayfish on other native crustaceans remains largely unknown. There have been neither accounts of displacement of native freshwater species by the introduction of redclaw crayfish, nor detailed accounts of habitat alterations or introduction and transfer of disease to other native crayfish. However, experience with Northern Hemisphere crayfish suggests that both are distinctly feasible in Australia.

There are no compelling arguments on biological or ecological grounds for controls to be placed on the amount of redclaw crayfish, outside of its natural range, that can be taken and possessed by a recreational angler, but there are social and economic grounds for implementing controls.

In the impoundments where redclaw crayfish has established, the subsequent fisheries are valued highly by the local communities and attract tourists to the area. Limiting the number of redclaw crayfish that may be taken and possessed is a way to share the catch.

Unsubstantiated information suggests that there is continuing illegal sale of redclaw crayfish which has the potential to adversely impact on the aquaculture industry. With species of commercial value, bag limits help reduce the illegal sale by limiting the legal catch to below commercial quantities.

The return of berried females (carrying eggs and/or young) to their natural habitat (as listed above) would assist in protecting redclaw crayfish stocks.

Spiny crayfish

Current provision—Nil	Proposed amendment
No provision currently exists under the plan for spiny crayfish.	That the taking and possession of spiny crayfish be prohibited throughout Queensland. That spiny crayfish— <i>Euastacus</i> spp. be listed on Schedule 8—Aids to interpretation and definitions.

There are 16 *Euastacus* (spiny crayfish) species in Queensland. These are—

SPECIES	GENERAL LOCATION
<i>Euastacus bindal</i> (Morgan, 1989)	North eastern Queensland (Townsville)
<i>E. balanensis</i> (Morgan, 1988)	North eastern Queensland (Atherton Tableland region)
<i>E. eungella</i> (Morgan, 1988)	Mid eastern Queensland (Mackay region)
<i>E. fleckeri</i> (Watson, 1935)	North eastern Queensland (Mossman region)
<i>E. hystricosus</i> (Riek, 1951)	South eastern Queensland (Conondale Range region)
<i>E. jagara</i> (Morgan, 1988)	South eastern Queensland (Warwick region)
<i>E. maidae</i> (Riek, 1956)	South eastern Queensland (Qld/NSW border region)
<i>E. monteithorum</i> (Morgan, 1989)	South eastern Queensland (Calliope Range region)
<i>E. polysetosus</i> (Riek, 1951)	North eastern Queensland (Barrington Tops)
<i>E. robertsi</i> (Monroe, 1977)	North eastern Queensland (Cooktown)
<i>E. setosus</i> (Riek 1956)	South eastern Queensland (Brisbane region)
<i>E. sulcatus</i> (Riek 1951)	South eastern Queensland (Qld/NSW Border region)
<i>E. suttoni</i> (Clark, 1941)	Far north eastern NSW and southern Queensland
<i>E. urospinosus</i> (Riek, 1956)	South eastern Queensland (Nambour region)
<i>E. valentulus</i> (Riek, 1951)	South eastern Queensland and far north eastern NSW
<i>E. yigara</i> (Short and Davie, 1993)	North eastern Queensland (Cardwell Range)

These crayfish are particularly vulnerable as they are typically conspicuous animals that are easily targeted, are slow growing, late maturing and are susceptible to overfishing.

The natural habitat of many spiny crayfish comprises fast-flowing mountain streams in elevated rainforest areas along the eastern seaboard of Queensland. They are also found in the Queensland section of the Murray-Darling Basin where the distribution is confined to the Border Rivers and Condamine-Balonne River catchments.

At present a number of spiny crayfish populations are protected by virtue of their occurrence within National Parks. However, the *Euastacus* genus is not protected outside national park areas.

Offering protection to the *Euastacus* genus, by a restriction on taking or possessing spiny crayfish from the wild, will aid in ensuring the sustainability of spiny crayfish throughout Queensland.

Barramundi (size limit)

Current provision—Section 23(1)(b)	Proposed amendment
A minimum size limit of 58cm for barramundi currently exists within the non-tidal waters of the Gulf of Carpentaria.	That the minimum size limit for barramundi within the non-tidal waters flowing into the Gulf of Carpentaria be increased from 58cm to 60cm.
A minimum size limit of 60cm for barramundi currently exists within the tidal waters of the Gulf of Carpentaria.	

This anomaly between the *Fisheries (Freshwater) Management Plan 1999* and *Fisheries (Gulf of Carpentaria Inshore Fin Fish) Management Plan 1999* has been identified as posing significant difficulties for enforcement in the Gulf region.

This increase in the size limit for barramundi was seen as a step in the right direction for ensuring the sustainability of gulf barramundi fisheries. This was provided for in the gulf plan and now needs to be provided for in the freshwater plan.

As our understanding of the gulf barramundi fisheries increases, the legislation will need to be reviewed to ensure the long-term sustainability of this fishery.

Mangrove jack

Current provision—Nil	Proposed amendment
No provision currently exists under the plan to protect mangrove jack within the non-tidal waters of the Gulf of Carpentaria.	That a bag limit of 5 for mangrove jack be introduced for the non-tidal waters flowing into the Gulf of Carpentaria.
A bag limit of 5 for mangrove jack exists within the tidal waters of the Gulf of Carpentaria.	That mangrove jack— <i>Lutjanus argentimaculatus</i> be listed under Schedule 8—Aids to interpretation and definitions.

At present in the non-tidal (freshwater) waters flowing into the Gulf of Carpentaria, anglers are not limited in the number of mangrove jack that they can keep. However, anglers in the tidal waters of the Gulf are restricted to a limit of five mangrove jack. This anomaly between the *Fisheries (Freshwater) Management Plan 1999* and *Fisheries (Gulf of Carpentaria Inshore Fin Fish) Management Plan 1999* has been identified as posing significant difficulties for enforcement in the Gulf region.

The proposal will not only protect mangrove jack fisheries resource but will also remove the enforcement difficulties that occur with mangrove jack in the Gulf of Carpentaria.

Bloomfield River cod

Current provision—Nil	Proposed amendment
No provision currently exists under the plan to protect Bloomfield River cod.	That the taking and possession of Bloomfield River cod be prohibited throughout Queensland.
	That Bloomfield River cod— <i>Guyu wujalwujalensis</i> be listed under Schedule 8—Aids to interpretation and definitions.

The Bloomfield River cod has recently been described as *Guyu wujalwujalensis* and is the only member of this genus. It is the only tropical representative of the family Percichthyidae in Australia. Bloomfield cod is restricted to the upper reaches of the Bloomfield River, just north of Cape Tribulation. Within the Bloomfield River it is restricted to the main river channel upstream of the Bloomfield Falls and downstream of Roaring Meg

Falls. Intensive sampling has failed to find Bloomfield cod elsewhere within the catchment.

The Bloomfield River is part of the Wet Tropics World Heritage Area and one of the least disturbed catchments in Queensland. Bloomfield River cod is currently listed as 'vulnerable', according to the IUCN Red List category classifications used by the Australian Society for Fish Biology, due to the restricted nature of its distribution, which accords it high conservation value. Its continued survival requires careful management.

This species only grows to 10cm and is not considered a recreational species. The regulation of this species would offer it protection, specifically from unregulated collection, until more is known about its biology and management needs.

STOCKED IMPOUNDMENT PERMITS

The Stocked Impoundment Permit Scheme has been operating since 12 July 2000. The main aim of the Scheme is to raise funds for the provision of native fish fingerlings for stocking the dams in the Scheme and for activities aimed at enhancing these dam fisheries. The Scheme enables the people using fishing lines or set lines in the specific dams to contribute to the cost of restocking the dams where they fish. Typically, impoundment fisheries are 'put, grow and take' fisheries where most stocked species will not reproduce and as a result are dependent on regular stocking.

A Stocked Impoundment Permit is currently required for fishing at the following 25 dams—

Bill Gunn Dam (Lake Dyer)	Somerset Dam
Lenthalls Dam	Coolmunda Dam
Bjelke Petersen Dam	Lake Clarendon
Leslie Dam	Eungella Dam
Boondooma Dam	Teemburra Dam
Maroon Dam	Gordonbrook Dam
Borumba Dam	Tinaroo Falls Dam
Moogerah Dam	Isis Balancing Storage (Lake Gregory)
Burdekin Falls Dam	Wivenhoe Dam
Lake Monduran	Kinchant Dam
Cania Dam	Wuruma Dam
Peter Faust Dam	Lake MacDonald
Connolly Dam	

A principle of the scheme is that an impoundment will be considered for inclusion if it is nominated by the local fish stocking group and supported by the water-controlling body for that impoundment.

Inclusion of Glenlyon Dam

Current provision—Sections 44 and 45; Schedule 8, Section 9	Proposed amendment
A recreational angler using a line is required to hold a permit for 25 specific stocked dams as listed under the Stocked Impoundment Permit Scheme.	That Glenlyon Dam be included on the list of dams that require a recreational angler using a line to hold a Stocked Impoundment Permit.

Glenlyon Dam Fish Restocking Group has requested that Glenlyon Dam be included on the Stocked Impoundment Permit Scheme. The water-controlling body for Glenlyon Dam, the Dumaresq-Barwon Border Rivers Commission, supports the inclusion of Glenlyon Dam on the Scheme. The inclusion of Glenlyon Dam on the Scheme will supplement funding raised by the voluntary members of the community-based Glenlyon Fish Restocking Group, for the continued stocking of Glenlyon Dam.

Inclusion of Cressbrook Dam and Cooby Dam

Current provision—Sections 44 and 45; Schedule 8, Section 9	Proposed amendment
A recreational angler using a line is required to hold a permit for 25 specific stocked dams as listed under the Stocked Impoundment Permit Scheme.	That Cressbrook Dam and Cooby Dam be included on the list of dams that require a recreational angler using a line to hold a Stocked Impoundment Permit.

Toowoomba and District Fish Stocking Association has requested that both Cressbrook Dam and Cooby Dam be included on the Stocked Impoundment Permit Scheme. The water-controlling body for both of these dams, the Toowoomba City Council, supports the inclusion of both Cressbrook Dam and Cooby Dam on the Scheme. The inclusion of both Cressbrook Dam and Cooby Dam on the Scheme will supplement funding raised by the voluntary members of the community-based Toowoomba and District Fish Stocking Association, for the continued stocking of these two dams.

It is understood that the current recreational permit fee for both Cooby Dam and Cressbrook Dam (required for water-based recreational activities), administered by the Toowoomba City Council, will be removed.

Inclusion of Callide Dam

Current provision—Sections 44 and 45; Schedule 8, Section 9	Proposed amendment
A recreational angler using a line is required to hold a permit for 25 specific stocked dams as listed under the Stocked Impoundment Permit Scheme.	That Callide Dam be included on the list of dams that require a recreational angler using a line to hold a Stocked Impoundment Permit.

Callide Valley Native Fish Stocking Association has requested that Callide Dam be included on the Stocked Impoundment Permit Scheme. The water-controlling body for this dam, SunWater, supports the inclusion of Callide Dam on the Scheme. The inclusion of Callide Dam on the Scheme will supplement funding raised by the voluntary members of the community-based, Callide Valley Native Fish Stocking Association, for the continued stocking of this dam.

APPARATUS

Restrictions on the type of fishing apparatus permitted for use in a particular fishery is a very effective method of controlling the taking of fish. Most legal fishing methods do not pose a threat to the survival of fish populations. The survival of fish populations in freshwater is likely to be threatened by illegal fishing methods such as the use of nets and explosives.

Dilly mesh size

Current provision—Nil	Proposed amendment
No provision currently exists for a mesh size restriction for dillies used in non-tidal waters.	That a mesh size of no more than 25mm be specified for dillies used in non-tidal waters.

The provisions of the plan relating to dillies are very broad as they prescribe only the diameter of the dilly (no more than 125cm).

Concerns have been raised that the mesh size should be restricted in the plan. This would prevent ‘suicide’ nets being converted into dillies and used to ‘mesh’ fish. The size of the mesh should be in keeping with the mesh size of 25 mm that is specified for other freshwater apparatus.

Round traps

Current provision—Nil	Proposed amendment
No provision currently exists for use of round traps in non-tidal waters.	That provision for the use of round traps be included in the plan. The traps must not exceed 70cm in diameter, 50cm in height, and must not have more than 4 entrances, each entrance measuring no more than 10cm in any dimension. If the trap does not have a mesh made of rigid material, the size of the mesh must not be more than 25mm. That the definition of trap, as specified in section 35, include round trap.

The plan specifically provides for the use of rectangular-shaped traps in freshwater. Round traps are commonly used, however the present definition of a trap does not cover round traps. The proposed provisions are similar to those for other funnel traps.

Set lines

Current provision—Section 41(3)(a)	Proposed amendment
A person can currently use up to 6 fishing lines or set lines, alone or in combination.	That the number of fishing lines or set lines, alone or in combination, that may be used under the plan be reduced from 6 to 3 throughout Queensland.

This proposal has been suggested because it is believed that it is difficult for a person to manage six set lines successfully and guarantee that regulated fish will not be taken. The use of three lines is seen as a more reasonable number of lines for a person to service whilst yielding a catch result that fairly shares the resource with other users.

REVIEW PROVISIONS OF THE PLAN

Current provision—Section 69(3)	Proposed amendment
The Chief Executive must currently review certain sections of the plan every two years, or at an earlier time if it is considered appropriate.	That the provision to undertake a review of certain sections of the plan, when considered appropriate, should remain, and the two year trigger point be removed.

Some sections of the plan must be reviewed every two years (i.e., a minor review). The sections to be reviewed every two years include aspects such as bag and size limits, as per this current review phase. The current review has been necessary as a fine tuning exercise for the freshwater plan. This has enabled those matters that were not dealt with completely during the development of the plan, and any errors in the plan, to be rectified early in the life of the plan.

Under the current provisions of the plan, certain consultation requirements are necessary to complete the review. If the review period is

too lengthy there will not be a sufficient time lapse prior to the next two year review.

It is considered unnecessary to continue this exercise on a two year basis, or in particular to have a specific provision that triggers this review on a two year basis. The provision to undertake a minor review, when considered appropriate, will allow for issues to be resolved when they arise.

OTHER PLAN PROPOSALS

Listing of khaki bream

Current provision—Nil	Proposed amendment
No provision currently exists under the plan for khaki bream.	That khaki bream be listed under Schedule 8—Aids to interpretation and definitions—with a scientific name of '<i>Hephaestus tulliensis</i>'. That khaki bream be listed under Schedule 6—Where certain aquaculture fisheries resources may be released (list of river systems below).

New scientific evidence shows that khaki bream (*Hephaestus tulliensis*) is now considered to be a distinct species to sooty grunter (*Hephaestus fuliginosus*). Khaki bream was originally thought to be a junior synonym of sooty grunter. This new information suggests that sooty grunter and khaki bream should be listed separately within the plan.

Khaki bream is produced as an aquaculture fisheries resource in Queensland and therefore is potentially available from commercial hatcheries for fish stocking purposes. Schedule 6—Where certain aquaculture fisheries resources may be released—needs to be amended in response to the new scientific evidence. Khaki bream are known to naturally occur from the Daintree River south to the Tully River. It is proposed that khaki bream may be released only into the following river basins—

- Daintree

- Barron
- Russell
- Mulgrave
- North Johnstone
- South Johnstone
- Tully
- Murray

Sooty grunter—river basins where aquaculture product may be released

Current provision—Schedule 6, Section 10	Proposed amendment
Sooty grunter may currently be released only into the following river basins (as listed under Schedule 6)— • Alice • Archer • Barron • Belyando • Bowen • Burdekin • Clarke • Clifffdale • Cloncurry • Coen • Coleman • Daintree • Dulhunty • Edward • Eight Mile • Einasleigh • Embley • Flinders • Gilbert • Hann • Herbert • Holroyd	The Daintree river basin is removed from the listing of sooty grunter on Schedule 6—Where certain aquaculture resources may be released.

• Kendall • L Creek • Leichardt • Mission • Mitchell • Morning • Mulgrave • Murray • Nicholson • Norman • North Johnstone • Palmer • Pioneer • Plane • Russell • Saxby • Settlement • Staaten • Tully • Walsh • Watson • Wenlock	
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Scientific evidence now shows that sooty grunter are not naturally found in the Daintree River. This new information suggests that stocking of sooty grunter should no longer occur within this river system.

Sooty grunter—bag limit

Current provision—Schedule 4, Section 1	Proposed amendment
A bag limit of 10 for sooty grunter currently exists throughout Queensland.	That the bag limit of 10 for sooty grunter be removed from the plan. That a combined bag limit for sooty grunter and khaki bream of 10 be introduced.

A combined total bag limit on sooty grunter and khaki bream is a useful approach as it is difficult to distinguish between closely related species. Additionally, in some river systems both of these two species are found to occur naturally.

POLICY OBJECTIVES

The objectives of the amendments are to—

- (1) manage the taking of freshwater fish in a way that ensures—
 - their sustainability and maintains or improves their conservation status;
 - a fair division of access to freshwater fish among commercial, recreational and Aboriginal and Torres Strait Islander fishers;
- (2) manage the freshwater fishery to give optimal, but sustainable, community benefit; and
- (3) minimise the risk of damage to freshwater fish and their dependent ecosystems from non-indigenous and noxious fisheries resources.

LEGISLATIVE INTENT

The proposed amendments aim to contribute to the achievement of these objectives through the development of appropriate management arrangements. These arrangements will help to ensure the sustainability of the freshwater fisheries resources of Queensland, and the protection of the ecosystems on which these resources depend.

Amendments are proposed to current legislation in relation to bag limits, size limits, closed seasons for particular species targeted by recreational anglers, closed waters, fishing apparatus which may be used by recreational anglers, stocked impoundment permits, and river basins where aquaculture product may be released.

CONSISTENCY WITH THE AUTHORISING LAW

The proposed amendments are consistent with the authorising law in that they provide for the sustainability of the freshwater fisheries resource, whilst ensuring fair access to the resource. These amendments have been developed through public consultation. The consultation process has included release of a Plan Review Paper, consideration of public comments in response to the paper, and consultation with Government departments and key stakeholders.

The amendments are also consistent with the objectives of the *Fisheries Act 1994*. Implementation of the amendments will ensure that the following objectives of the Act are met—

- fisheries resources are used in an ecologically sustainable way;
- optimum community, economic and other benefits will be obtained from the fisheries resources; and
- access to fisheries resources is fair.

CONSISTENCY WITH OTHER LEGISLATION

The proposed legislation is not inconsistent with the policy objectives of other legislation.

FUNDAMENTAL LEGISLATIVE PRINCIPLES

The proposed legislation is consistent with Fundamental Legislative Principles.

The proposed legislation does not extinguish the rights of Aborigines and Torres Strait Islanders to take, use or keep fisheries resources in accordance with Aboriginal tradition or under Islander custom.

NATIONAL COMPETITION POLICY

The guiding principle of the Competition Principles Agreement, under the National Competition Policy (NCP), is that legislation should not restrict competition unless it can be demonstrated that—

- the benefits of the restriction to the community as a whole outweigh the costs; and
- the objectives of the legislation can only be achieved by restricting competition.

There are no NCP issues associated with the proposed amendments to bag limits, size limits, closed waters, closed seasons, permitted apparatus and stocked impoundment permits, as all users of the fisheries resource must comply with these proposals.

The proposed amendments will aid in protecting freshwater fish stocks, encourage the community to share the catch, convey the message of ethical and responsible behaviour in the use of fisheries resources and encourage fishers to catch only what they need.

The benefits to the community as a whole, as a result of introducing the proposed amendments, outweigh the costs of introducing the amendments.

RISK IDENTIFICATION

There are concerns that if the proposed amendments are not implemented the objectives of both the Act and the plan may not be achieved. There are concerns that—

- the freshwater fisheries resource will not be used in an ecologically sustainable way;
- optimum community and economic benefits will not be obtained from the freshwater fishery;
- access to the freshwater fisheries resource will not be fairly divided between recreational, commercial, and Aboriginal and Torres Strait Islander fishers;
- the conservation status of the freshwater fishery will not be maintained or improved;
- the risk of damage to freshwater fish and their dependent ecosystem, from non-indigenous and noxious fisheries resources, will not be minimised.

MANAGEMENT ALTERNATIVES

The options and alternatives for achieving the policy objectives are—

- do nothing—no intervention;
- proposed legislation;
- self regulation;
- public education programs;
- increased enforcement.

DO NOTHING—NO INTERVENTION

Although ‘no regulation’ may be considered as an alternative management mechanism, it raises serious difficulties. The need for government involvement in fisheries management stems from the ‘open access’ nature of fisheries resources.

Experience worldwide has shown that where there is ‘open access’ to fisheries resources, there is little incentive for fishers to conserve these resources. This occurs because there is no direct ownership of the resources and little incentive to protect these for the future.

As these stocks become fully utilised, competition between fishers often leads to resource depletion. Left unmanaged, the resulting increase in fishing effort is reflected in lower catches and increased conflict between resources users, and can place at risk the satisfaction of custom and tradition by indigenous groups.

The role of governments, as custodians of the resource, is to ensure that fisheries resources are used in an ecologically sustainable manner and as efficiently as possible. In doing so, governments have the responsibility of ensuring that the basis for sharing the resource amongst all users is clearly defined and equitable.

Ensuring that the allocation of fisheries resources and level of utilisation is consistent with the needs of present and future generations has been shown worldwide to require effective regulation.

PROPOSED LEGISLATION

Current management arrangements for the freshwater fisheries resources of Queensland are not considered to be sufficient to achieve the long-term sustainability of these resources nor to maximise the community benefits that may be derived from these resources.

SELF REGULATION

Self regulation by user groups would be unlikely to resolve the fundamental conflict about competition for access to the resource. This is particularly the case when there is no private ownership and no mechanism for fishers, or groups of fishers, to 'capture' the benefits of their good management. Indeed, fisheries management currently involves heightened debate regarding the respective legal 'rights' of various user groups and their access to, or share of, fisheries resources.

In these circumstances, self regulation is unlikely to succeed and has been rejected by governments in Australia and overseas. However, the extent and form of regulatory intervention varies from place to place. This is not to say that fishers or particular groups of fishers do not promote various self-regulatory management arrangements. This commonly occurs, with many current management arrangements having been proposed by various stakeholder groups. However, an appropriate regulatory framework needs to be in place to give effect to these arrangements.

PUBLIC EDUCATION PROGRAMS

Public education programs are a key element of implementing any new legislation. These programs increase community awareness of legislation associated with the fishery. Public education programmes, without legislative support, are not considered to be an adequate alternative to ensuring the ecologically sustainable use of Queensland's freshwater fisheries resources.

INCREASED ENFORCEMENT

Enforcement is a key element of implementing any new legislation. Compliance with legislation is unlikely to be successful without the appropriate enforcement measures. Increased enforcement, without legislative support, is not considered to be an adequate alternative to ensuring the ecologically sustainable use of Queensland's freshwater fisheries resources.

CONSULTATION

The proposed amendments have arisen from consultation with both community and government through the fisheries management planning process. This has involved consultation with all stakeholders through a clearly defined process that includes a committee consisting of representatives from community, industry and government.

The Freshwater Fisheries Management Advisory Committee (FMAC) provides advice on appropriate management arrangements for the sustainable use of freshwater fisheries resources throughout Queensland. Stakeholders on this committee include—

- commercial fishers (Queensland Seafood Industry Association);
- recreational fishers (Sunfish Queensland);
- fish stocking groups (Freshwater Fishing and Stocking Association of Queensland);
- conservationists (including Northern Queensland Conservation Council);
- charter vessel operators;

- fish hatchery operators;
- aquarium fish hobbyists;
- scientists;
- South East Queensland Water Corporation;
- Department of Natural Resources and Mines;
- SunWater;
- Environmental Protection Agency;
- Department of Primary Industries.

In accordance with the requirements of the plan, certain sections must be reviewed within two years of the commencement of the plan. The following process addresses the consultation and amendment requirements of the plan—

- Issues that have arisen during the first two years of operation of the plan were considered and discussed by FMAC;
- These issues were compiled in a Plan Review Paper that was released for public comment for two months, and notified in the Government Gazette on 4 May 2001. The review was also advertised in the Courier Mail and regional newspapers on 5 May 2001. The Plan Review Paper was directly forwarded to key stakeholder groups such as FFSAQ, Sunfish, QSIA, stocking groups, fishing clubs, conservation groups, Landcare groups, other government agencies, shire councils, bait and tackle operators, and small businesses that issue Stocked Impoundment Permits. Free copies were also available directly from the Department of Primary Industries;
- Almost 300 responses were received in response to the review paper. Views and comments received were taken into consideration by FMAC resulting in a set of recommendations for proposed amendments as described in this Regulatory Impact Statement (RIS);
- The RIS has been released for further public comment for 5 weeks. Any comments that are received will be considered by FMAC before amendments to the plan are finalised.

PRELIMINARY IMPACT ASSESSMENT

The proposed amendments to closed seasons, declaration of closed waters, regulation of the resource through bag limits and size limits, and permitted apparatus will have a medium positive impact on the sustainability of the freshwater fisheries resource, division of access to the resource and maintaining the conservation status of the freshwater fisheries resource.

Closed seasons protect fish at particularly vulnerable times in their lifecycle. These vulnerable times are usually immediately before or during the spawning season, when they are concentrated in relatively confined areas or are otherwise more susceptible to being caught. The proposed exemptions to these closures are for locations where the fish are not likely to contribute to a natural spawning population and will allow access to the resource to continue.

Closed waters are declared to ensure the sustainability of the resource. Structures such as dams and weirs create barriers to the movement of native migratory fish such as Australian bass. Consequently, these fish commonly congregate on the downstream side of such structures. During times of drought and low flows, fish may also congregate in the deep waters on the upstream side of some structures. This increases the susceptibility of fish in these areas to heavy fishing pressure.

Bag limits, size limits and restrictions on fishing apparatus are used as management measures to protect the resource and share the catch. In particular, size limits protect small fish until they have had the chance to breed. These measures also contribute to maintaining the conservation status of the fishery and convey the message of ethical and responsible behaviour in the use of fisheries resources and encourage fishers to only take what they need.

The proposed inclusion of additional dams on the Stocked Impoundment Permit Scheme will have a high positive impact on achieving optimal but sustainable community benefit through the freshwater recreational line fishery. The funds generated from the Scheme are used to purchase fish fingerlings for stocking in the specific impoundments where a Stocked impoundment Permit is required for fishing. Funding from the Scheme will result in increased stocking levels in these impoundments and quality fishing opportunities for the community. A greater number of anglers fishing at these dams and visiting the surrounding areas have the potential to positively impact on the local economies. The funds generated from the Scheme will also remove the burden of fund-raising for the local fish

stocking community groups, some of which are finding it increasingly difficult to continue to raise funds for fish stocking.

COST-BENEFIT ASSESSMENT

The benefits and costs of implementing the proposed amendments to the plan are set out below.

BENEFITS TO GOVERNMENT

Implementation of the proposed amendments will—

- Enhance the capacity to reflect ecologically sustainable development principles in freshwater fisheries management;
- Provide a greater range of management arrangements to ensure the objectives of the both the Act and the plan are met;
- Enhance the capacity for management to be more responsive to the needs of the freshwater fisheries resource.

COSTS TO GOVERNMENT

Costs to government from implementing the proposed amendments will include—

- Conducting community education campaigns;
- Ensuring compliance and enforcement of the new legislation.

Community education campaigns

Community education will be necessary to explain the changes to legislation. Increased costs associated with developing and implementing education campaigns include—

- Preparation and printing of new education and extension material e.g. leaflets;
- Letters of advice and circulation of educational materials to stakeholders and community;
- Attendance at key stakeholder meetings to explain the new changes;

- Preparation of advice of changes through media outlets.

Compliance and enforcement

Increased costs associated with ensuring compliance with, and enforcement of, amendments to the plan include—

- Staff advice and training regarding the new changes;
- Increased enforcement time associated with ensuring compliance with the changes;
- Increased time spent educating and explaining the changes to the community.

BENEFITS TO COMMUNITY

Benefits to the community from the implementation of the proposed amendments will include—

- Greater certainty in the long-term sustainability of Queensland's freshwater fisheries resources;
- Increased community confidence in the ability of management agencies and resource users to manage Queensland's freshwater fisheries resources;
- Improved management of Queensland's freshwater fisheries resources;
- Maintenance or improvement in the conservation status of Queensland's freshwater fisheries resources;
- Improvements in regional economies;
- Protection and enhancement of the associated traditional and cultural rights of indigenous people;

COSTS TO COMMUNITY

Costs to the community from the implementation of the proposed amendments will include—

- some limitations on access to fisheries resources by way of, for example, the type of apparatus that may be used and the number and size of fish which may be taken.

Costs would obviously be less if either ‘no intervention’ or ‘self regulation’ was adopted. However, the risk to the future sustainability of Queensland’s freshwater fisheries resources would increase and threaten the viability of the fisheries that depend on them. This would be an unacceptable risk for the Government as the custodians of Queensland’s fisheries resources for present and future generations. Such an approach has not received any support from Government or the community.

ENDNOTES

1. Laid before the Legislative Assembly on . . .
2. The administering agency is the Department of Primary industries.